

State of Iowa
Before the Iowa Board of Behavioral Science

RE: Mental Health Counselor License of	)	
	)	
Amanda Brune	)	Case No. 15-0030
License No. 001402	)	
	)	
Respondent.	)	DECISION

On or about November 18, 2020, respondent Amanda Brune submitted a Request for Reinstatement to the Iowa Board of Behavioral Science (Board). The Board heard the matter on March 11, 2021. The Respondent appeared and represented herself. Laura Steffensmeier, Assistant Attorney General, represented the State of Iowa. Administrative Law Judge (ALJ) Joseph Ferrentino assisted the Board in conducting the hearing. Following the hearing, the Board deliberated in closed session and instructed the ALJ to prepare this decision in accordance with its deliberations.

The record includes the Notice of Reinstatement Hearing, Respondent's testimony, State Exhibits 1-6, and Respondent's exhibits A-O.

FINDINGS OF FACT

Disciplinary History

Respondent Amanda Brune appeared before the Iowa Board of Substance Abuse Certification (IBSAC) in 2005 upon allegations that she was having close personal relationships with clients, including an allegation she was having sexual intercourse with one client. Respondent did not attend her ethics hearing because she was in court as a witness at the same time. Following hearing, Respondent's substance abuse counselor certification was permanently revoked for violations of Principle II (Dual Relationships) and Principle IV (Professional Competence and Integrity). (Ex. 4).

In 2011, Brune filed for a mental health counselor license with this Board. She did not disclose her IBSAC discipline. (Ex. 4).

In 2014, Brune pled guilty to the crime of tampering with records following allegations she had billed Medicaid for services she provided a family member at times when she was also seeing clients. Brune entered into a settlement agreement with the Board to resolve allegations that Brune had been convicted of a crime related to her profession or occupation. The settlement agreement provided that Brune's license would be placed on probation for two years. (Ex. 4). In a separate case, Brune was excluded from participating in Medicaid until at least 2019. (Ex. 5).

In 2015, the Board learned of Brune's undisclosed IBSAC discipline. The Board subsequently revoked her license. Brune was not eligible to apply for reinstatement for three years. (Ex. 4).

Reinstatement

In November 2020, Brune applied for reinstatement. Along with her application, she submitted character references from her own counselor, Doris Schmitt; along with friends, former clients, and parents of former (minor) clients. (Ex. A).

Brune has undertaken several efforts to demonstrate the concerns that led to her license revocation no longer exist. Brune has attended ten counseling sessions with Schmitt, although she is not presently in counseling. If reinstated, Brune intends to practice alongside with Schmitt, who would serve as a mentor, supervisor, and practice monitor. Brune has attended one ethics course since her revocation. (Brune testimony).

Brune also contends some of the past concerns never existed in the first place. She continues to maintain, for example, that she never engaged in inappropriate dual relationships of the type alleged in 2005. She also argues that she did not "intentionally" engage in Medicaid fraud, only "on paper." (Brune testimony).

While Brune remains excluded from Medicaid, she believes she need only handle some administrative tasks to restore her status. (Brune testimony).

CONCLUSIONS OF LAW

Persons whose Board licenses have been suspended may apply for reinstatement in accordance with the terms of their suspension. Iowa Admin. Code r. 645-11.31(1). A reinstatement application must allege facts which, if established, will be sufficient to enable the board to determine the basis for the suspension no longer exists and that it will be in the public interest for the license to be reinstated. Iowa Admin. Code r. 645-11.31(4). The burden of proof is on the Respondent. *Id.*

The issues before the Board are whether the basis for the revocation of Respondent's license no longer exists and whether reinstatement is in the public interest. Based on this hearing record, the Board was unable to conclude that it is in the public interest for Respondent's license to be reinstated at this time.

Respondent's license was revoked because she committed Medicaid fraud and failed to disclose prior discipline relating to inappropriate dual relationships. Years later, she does not take full responsibility for her actions. She states she committed Medicaid fraud "on paper" but not "intentionally." She denies any inappropriate dual relationships.

The record contains new evidence supporting the conclusion that Respondent has not fully turned this corner. Respondent testified she would form a professional relationship with her latest counselor, Doris Schmitt, if reinstated. That concerns the Board. Respondent also solicited character references from former clients via Facebook. That concerns the Board.

While the Board is unwilling to reinstate the Respondent at this time, the Board does not foreclose that possibility in perpetuity. The Board recommends the Respondent avail herself of the following to support any future applications for reinstatement:

- A course in ethical billing
- An intensive class on boundaries, such as the ones available through PBI Education: <https://pbieducation.com/topic/boundaries/>
- A course on dual relationships
- A psychological evaluation
- Ongoing therapy
 - It would additionally be helpful for the Board to have a current update from a counselor or therapist when Respondent applies for reinstatement again.

Additionally, it would be helpful to any future application if Respondent had a commitment to serve as a practice monitor from a licensed therapist who was not Respondent's own therapist.

For now, the application for reinstatement is denied.

ORDER

IT IS THEREFORE ORDERED that the Respondent's application for reinstatement is denied.

Dated this 20th day of April, 2021.

/s/Donald Gilbert

Chairperson, Iowa Board of Behavioral Science

cc: Laura Steffensmeier, Assistant Attorney General